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|   |                                                    | <p>in the Consumer Lease Agreement.</p> <p>This action is stayed pending completion of arbitration. (Code Civ. Proc., § 1281.4.) An Alternative Dispute Resolution (ADR) review hearing is scheduled for <i>March 12, 2027 at 8:30 a.m. in Department C44.</i></p> <p><i>The Case Management Conference set October 16, 2026 is vacated.</i></p> <p>Moving party shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 7 | <b>Piper vs. Smith</b><br><br><b>2025-01518710</b> | <p><b>Motion to Quash Service of Summons</b></p> <p>Defendants Frances Marie Smith and Transforming Live Counseling LLC's motion for order quashing service of summons and to dismiss Defendants from this action pursuant to Code of Civil Procedure §§ 418.10(a)(1) and 581 (h) is denied on procedural grounds. The motion is untimely. It is undisputed defendants were served with the summons and complaint on October 25, 2025. (See ROAs 14 and 16.) As such, the time to respond expired November 24, 2025. This motion was not filed until February 10, 2026. Defendants provided no explanation for this delay and did not obtain a stipulation from plaintiff to waive the time requirement.</p> <p>Defendant Smith to give notice.</p> <p><b>Motion for Leave to File Special Motion to Strike (ROA 37)</b></p> <p>Defendants Frances Marie Smith and Transforming Live Counseling LLC's motion for leave to file an anti-SLAPP motion beyond the 60 day statutory time period is GRANTED. The facts demonstrate that the claim may be barred by the litigation privilege and an early determination of that issue is in the parties' (and the court's) best interest. Further, the delay in filing the motion was not significant. Smith filed it shortly after she retained counsel. There is no demonstrable prejudice to Piper in hearing the motion now.</p> <p>Defendant Smith to give notice.</p> <p><b>Motion to Strike - Anti SLAPP (ROA 38)</b></p> <p>Defendants Frances Marie Smith and Transforming Live Counseling LLC's special motion to strike is DENIED. Even if</p> |

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|   |                                                                                                | <p>the allegations of the complaint were made in connection with ongoing litigation, the alleged conduct is not protected by the litigation privilege of Civil Code section 47.</p> <p>The protections of Civil Code section 47, subdivision (b)(1) contain an important exception: allegations or averments in <i>marital dissolution or legal separation</i> actions made of or concerning a person by or against whom no affirmative relief is prayed are <u>not</u> privileged unless certain conditions are met. (Civ. Code, § 47, subd. (b)(1).) This means that although defendants' services may have been retained for the custody battle, Smith was not a party to the dissolution action and no affirmative relief is sought by or against her in the custody action. Therefore, the litigation privilege does not apply. The anti-SLAPP motion fails at step two because the Plaintiff Piper has demonstrated a probability of prevailing. (<i>L.G. v. M.B.</i> (2018) 25 Cal.App.5<sup>th</sup> 211.)</p> <p><i>Case Management Conference continued to January 15, 2027 at 8:30 a.m. in Department C44.</i></p> <p>Defendant Smith to give notice.</p> |
| 8 | <b>Pope vs. Manzo</b><br><br><b>2025-01470823</b>                                              | <p><b>Motion for Separate Judgment</b></p> <p>Plaintiff Michael Pope's motion for a separate judgment against defendant Ikonic Investments, LLC is GRANTED. Plaintiff is to file a default packet per Code of Civil Procedure section 585 as to Defendant Ikonic Investments, LLC.</p> <p>The OSC re: Dismissal as to Defendant Ikonic Investments, LLC is continued to <i>January 15, 2027 at 8:30 a.m. in Department C44.</i></p> <p>The OSC re: Dismissal as to Defendant Elizabeth Manzo for Failure to Serve is <i>vacated</i>, as a proof of service by publication for this defendant was filed on 7/7/26 (ROA 45).</p> <p>Plaintiff to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 9 | <b>Santa Ana Police Officers Association vs. City of Santa Ana</b><br><br><b>2021-01230129</b> | <p><b>Motion to Consolidate</b></p> <p>The motion for consolidation filed and agreed to by all parties is granted. The Court finds the cases have common issues of law and fact. The Court orders a complete consolidation.</p> <p>OCSC Case No. 30-2021-01230129-CU-OE-CJC ("Serrano I") is the lead case. All future filings for OCSC Case No. 30-2023-</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |